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BRITISH CITIZENSHIP BY REGISTRATION



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BRITISH CITIZENSHIP BY REGISTRATION

If you do not automatically qualify for British citizenship, applying for Registration as a British Citizen could be your pathway to securing British Citizenship. Whether you have a clear entitlement or are considering a discretionary registration application, understanding the main eligibility requirements is crucial. This guide will walk you through the key criteria you must meet to be eligible for Registration as a British Citizen, from birth conditions and parental citizenship to special circumstances for those born outside the UK.

Our experienced immigration barristers are here to help you navigate the complexities of British nationality law and ensure your application is handled with expertise and care.

What Are the Main Eligibility Requirements for Registration as a British Citizen?

In order to be entitled to register as a British citizen, you will need to satisfy the Home Office that you meet one of the following requirements:

- You were born in the UK on or after 1 January 1983, you are not automatically a British citizen by birth, your mother and/or your father became British citizens or settled in the UK before your 18th birthday, and you applied for registration before your 18th birthday; or
- You were born in the UK on or after 1 January 1983, you are not automatically a British citizen by birth, on or after 13 January 2010 your mother and/or your father became a member of the armed forces before your 18th birthday, and you applied for registration before your 18th birthday; or
- You were born in the UK on or after 1 January 1983, you are not automatically a British citizen by birth, you were absent from the UK for no more than 90 days in each of

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- first ten years of your life, and you applied for registration at any time after your 10th birthday (you may therefore apply under this provision at any age) <https://www.google.co.uk>
- (2) You were born outside the UK on or after 1 January 1983, at the time of your birth one of your parents was a British citizen by descent, that parent's father or mother was a British citizen otherwise than by descent, at any time prior to your birth that parent had been in the UK for a consecutive period of at least three years, during that three year period that parent had not been absent from the UK for more than 270 days, and you applied for registration before your 18th birthday; or
- You were born outside the UK on or after 1 January 1983, at the time of your birth one of your parents was a British citizen by descent, you apply for registration before your 18th birthday, you and your parents were in the UK on the day 3 years before the application is made, during the intervening 3 year period neither you nor your parents have been absent from the UK for more than 270 days, and both your mother and your father consent to the registration; or
 - You were born outside the UK and Colonies before 1 January 1983, at the time of your birth your mother was a Citizen of the UK and Colonies, you would have automatically been a Citizen of the UK and Colonies by descent through your mother if specific provisions of British nationality law had provided for this at the time of your birth in the same way as it provided for citizenship by descent through a father, and if in those circumstances you would have had the right of abode in the UK immediately before 1 January 1983; or
 - You were born in the UK before 1 July 2006, your parents were not married at the time of your birth, you have never been a British citizen, and you would have become a British citizen in certain specific circumstances had your parents been married at the time of your birth; or
 - You are a British Overseas Territories Citizen, a British National (Overseas), a British Overseas citizen, a British subject, or a British protected person, you apply for registration, you were in the UK five years before the date of application, during the intervening five year period you were not absent from the UK for more than 450 days or in the UK in breach of the immigration laws, and in the twelve months immediately before the date of application you were not absent from the UK for more than 90 days or subject to any restriction on the period for which you might remain in the UK; or
 - You are a British Overseas citizen, a British subject, a British protected person, or a British National (Overseas), you apply for registration, the Secretary of State is satisfied that you do not have any other citizenship or nationality, and the Secretary of State is satisfied that you have not voluntarily lost through action or inaction any other nationality at any time after 4 July 2002 (or, if you are only a British National (Overseas), after 19 March 2009); or
 - You were born outside the UK on or after 13 January 2010, at the time of your birth your mother or father was a member of the armed forces serving outside the UK, you apply for registration, and if you are under 18 at the date of application your parents consent to the registration.

You may also be entitled to be registered as a British citizen if you have previously renounced British citizenship, you are of full capacity, and your renunciation of British citizenship was necessary to enable you to acquire or retain some other citizenship or

nationality.

If you are not entitled to be registered as a British citizen you may still apply for registration on a discretionary basis: <https://www.google.co.uk/search?q=richmond+chambers+in>

- As a child, at any time before your 18th birthday;
- As a British overseas territories citizen, at any time.

What Else Do I Need to Know about Registration as a British Citizen?

If a person is aged 10 or over when they apply for registration as a British citizen, the Secretary of State must be satisfied that the person is of good character. Although the Supreme Court has declared the good character requirement to be incompatible with Convention rights in relation to some applications for registration, the statutory requirement currently remains in place.

Applications for registration on a discretionary basis, particularly as a child, can be challenging. Before applying on this basis it can be helpful to consider the merits of the application, both in principle and in regard to the evidence available. One particularly relevant factor for children is often whether their future can clearly be seen to lie in the UK.

If you are over 18 when your application for registration as a British citizen is successful, you will have to attend a **registration ceremony** (<https://www.gov.uk/citizenship-ceremonies#:~:text=Your%20local%20authority%20will%20organise,you%20go%20to%20yc>). At the end of the ceremony you will be presented with your certificate of registration as a British citizen.

How Our Immigration Barristers Can Help

Our immigration barristers have experience assisting with all types of nationality matters. Whether you are looking to apply for registration by entitlement or discretion, our barristers can guide you through the complexities of British nationality law.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration and nationality advice as part of a professional and friendly service.

WE CAN ALSO ASSIST WITH

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Loss of British citizenship status

WHAT CAN WE HELP YOU WITH?

To arrange an initial consultation meeting with one of our specialist nationality barristers, contact our British citizenship team on 0203 617 9173 or complete our enquiry form.

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